



CHAPTER 1.

An Act to authorise the urban district council of A.D. 1912.
Bedwelty to supply gas and water within their urban
district and the neighbourhood thereof to authorise
the purchase of certain gas and water undertakings
and to make further provision in regard to the local
government and improvement of the district.

[7th August 1912.]

WHEREAS the urban district of Bedwelty in the county
of Monmouth (in this Act called "the district") is an
urban district within the meaning of the Local Government
Act 1894 and is under the management and control of the
urban district council of Bedwelty (in this Act called "the
Council") :

And whereas the New Tredegar Gas and Water Company
Limited (in this Act called "the New Tredegar Company")
were in the year one thousand eight hundred and seventy-three
duly incorporated and registered in accordance with the provisions
of the Companies Acts :

And whereas by the New Tredegar Gas and Water Order
1878 confirmed by the Gas and Water Orders Confirmation Act
1878 powers were conferred upon the New Tredegar Company
to maintain and continue the gasworks already constructed on
the lands described in Schedule A. to the said Order and to
maintain and continue their existing waterworks on the lands
described in Schedule B. to the said Order and to supply gas
and water within the limits therein described and which comprise
a part of the district and part of the adjoining urban district
of Gelligaer in the county of Glamorgan :

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And whereas further powers were conferred upon the New Tredegar Company by the New Tredegar Gas and Water Order 1907 confirmed by the Gas and Water Orders Confirmation (No. 1) Act 1907:

And whereas by the Blackwood Gas Act 1909 the Blackwood Gas Company (in this Act called "the Blackwood Company") were incorporated and powers were conferred on the Blackwood Company to maintain and continue gasworks on lands described in the schedule to the said Act and to supply gas within the limits therein described and comprising a part of the district and also part of the adjoining urban district of Mynyddislwyn (in this Act called "the Mynyddislwyn district") and certain powers of purchase of the undertaking of the Blackwood Company (in this Act called "the Blackwood undertaking") were conferred on the Council and the council of the Mynyddislwyn district:

And whereas a part of the district is supplied with water by the Council and in part of the district there is no provision for the supply of gas:

And whereas it is expedient that the supply of gas and water respectively within the district should be under the control of the Council and that provision should be made in regard to the supply of gas and water by the Council within the limits prescribed by this Act:

And whereas it is expedient that the undertaking of the New Tredegar Company should be transferred to and vested in the Council in manner provided by this Act:

And whereas it is expedient that the Council should be authorised to purchase and the Blackwood Company be authorised to sell the Blackwood undertaking as in this Act provided and that in connection with such provision the Council should be authorised to sell by agreement so much of the said undertaking as is situate within the urban district of Mynyddislwyn to the Mynyddislwyn Council upon terms as in this Act provided:

And whereas it is expedient that further powers be conferred upon the Council for the regulation of streets and buildings sewers and drains and sanitary matters and otherwise in relation to the health local government regulation and improvement of the district:

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And whereas it is expedient that the Council should be authorised to borrow money for the purposes of this Act and that further powers should be vested in the Council with respect to finance:

And whereas the following Acts have been adopted by the Council and are in force within the district (that is to say):—

Dairies Cowsheds and Milkshops Order 1885;

Public Health Acts Amendment Act 1890 Parts III. and IV.;

Infectious Disease (Prevention) Act 1890;

Small Dwellings Acquisition Act 1889;

Housing of the Working Classes Act 1890 Part III.:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the seventh day of November one thousand nine hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Monmouth Guardian a local newspaper published and circulating in the district such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate:

And whereas such resolution was published twice in the Monmouth Guardian and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the twenty-fourth day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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A.D. 1912. with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Bedwellty Urban District Council Act 1912.

Incorporation of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section 13 thereof shall be read as if the words “or any premises” were inserted after the words “private building”;

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof);

(2) The Waterworks Clauses Acts 1847 and 1863 except—

(a) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(b) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts; and

(3) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construc-

tion And in this Act unless the subject or context otherwise requires— A.D. 1912.

- “The district” means the urban district of Bedwellty;
- “The Council” means the urban district council of the district;
- “The clerk” “the surveyor” “the medical officer” and “the inspector of nuisances” respectively mean the clerk the surveyor the medical officer of health and inspector of nuisances appointed by the Council in pursuance of the powers of any public Act and “medical officer” includes any person duly authorised to act temporarily as medical officer of health;
- “The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;
- “The New Tredegar Company” means the New Tredegar Gas and Water Company Limited;
- “The Order of 1878” means the New Tredegar Gas and Water Order 1878 confirmed by the Gas and Water Orders Confirmation Act 1878;
- “The Order of 1907” means the New Tredegar Gas and Water Order 1907 confirmed by the Gas and Water Orders Confirmation (No. 1) Act 1907;
- “The New Tredegar Agreement” means the agreement set forth in the First Schedule to this Act;
- “The Rhymney Company” means the Rhymney and Aber Valleys Gas and Water Company;
- “The Blackwood Company” means the Blackwood Gas Company;
- “The Blackwood Agreement” means the agreement set forth in the Second Schedule to this Act;
- “The undertaking of the Blackwood Company” means the undertaking of that company as defined by Article (1) of the Blackwood Agreement;
- “The Gelligaer Council” means the urban district council of the urban district of Gelligaer;
- “The Mynyddislwyn Council” means the urban district council of the urban district of Mynyddislwyn;

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“Daily penalty” means a penalty for every day on which any offence is continued by a person after conviction thereof;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the order or precept of the Council;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

Words and expressions to which meanings are assigned by the Public Health Acts have the same respective meanings.

Application
of Act.

4. This Act shall apply to and within the district except where otherwise expressed or implied.

PART II.

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ACQUISITION OF UNDERTAKINGS.

New Tredegar Gas and Water Company Limited.

5. The agreement dated the twenty-sixth September one thousand nine hundred and ten and made between the New Tredegar Company of the one part and the Council of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Confirma-
tion of agree-
ment with
New Tre-
degar Com-
pany.

6. Upon payment of the purchase money and completion of the sale in accordance with the New Tredegar agreement the undertaking property rights and things thereby contracted to be sold by the New Tredegar Company to the Council shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council in manner provided by the scheduled agreement and such transfer and vesting are in this Act referred to as "the transfer."

Transfer of
undertaking
of New Tre-
degar Com-
pany.

The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the New Tredegar Company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer.

7. The receipt in writing of three directors of the New Tredegar Company for any money to be paid to the New Tredegar Company by the Council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof. Provided that if from any cause the Council are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the New Tredegar Company.

Receipt for
purchase
money.

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Books and documents to remain evidence.

8. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the New Tredegar Company shall after the transfer be admitted in evidence in respect of the same or the like matter for or against the Council.

Repeal of Orders of 1878 and 1907.

9. Subject to the provisions of this Act the Order of 1878 and the Order of 1907 and so much of the Gas and Water Orders Confirmation Act 1878 and the Gas and Water Orders Confirmation (No. 1) Act 1907 respectively as relates thereto shall as from the transfer be repealed.

Application of Rhymney and Aber Valleys Water Act 1898.

10. Subject as in this section provided the provisions of the Rhymney and Aber Valleys Water Act 1898 so far as the same relate to or affect the New Tredegar Company together with the agreement set out in the Fourth Schedule to that Act shall as and from the transfer be construed and have effect as if therein in lieu of the New Tredegar Company the Council had been named and in lieu of the Order of 1878 and the Gas and Water Orders Confirmation Act 1878 this Act had been named. Provided that from and after the transfer section 51 (Company may purchase New Tredegar Gas and Water Company's undertaking by agreement) of the said Act shall be construed and have effect as if therein in lieu of the words "at or near New Tredegar and Tyrphil" there had been inserted the words "within the urban district of Gelligaer" and that subsection (2) (Repeal of New Tredegar Gas and Water Order 1878) of section 52 of the said Act shall be construed and have effect as if in lieu of the words therein "the said Gas and Water Orders Confirmation Act 1878 as relates to the New Tredegar Gas and Water Order" there had been inserted the words "the Bedwellty Urban District Council Act 1912 as relates to the area supplied by the said gasworks and waterworks (save the right to maintain therein any mains pipes and apparatus necessary for supplying with gas or water any part of the urban district of Bedwellty)" and that subsection (3) of the said section 52 shall be and the same is hereby repealed.

Power to Gelligaer Council to purchase mains pipes and apparatus in their district.

11.—(1) If the Gelligaer Council shall in either of the next two available Sessions of Parliament introduce into and bonâ fide promote a Bill authorising the Gelligaer Council to supply water within any area which shall comprise the portion of the Gelligaer district included within the water limits of

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the Council as defined by this Act (in this section called "the Gelligaer district") and to purchase the water mains pipes and fittings of the Council situate in the Gelligaer district (in this section called "the Gelligaer apparatus") or apply to the Local Government Board for sanction to purchase the Gelligaer apparatus the Council shall not oppose any such Bill or application except as to the details thereof and if such powers of supply and purchase be granted the Council shall on the 29th day of September next after the passing of such Bill or after the sanction of the Local Government Board or at such other date as may be agreed between the Council and the Gelligaer Council (hereinafter referred to as "the date of transfer") sell and transfer to the Gelligaer Council and the Gelligaer Council shall purchase the Gelligaer apparatus freed from all the then existing debentures mortgages obligations and liabilities of the Council and on and after the date of transfer all rights powers and obligations on the part of the Council to supply water within the Gelligaer district shall cease and determine.

(2) The Gelligaer Council shall pay to the Council as the consideration for the purchase (A) the value of the Gelligaer apparatus such value to be determined by two valuers the one to be appointed by the Council and the other to be appointed by the Gelligaer Council or in case of failure of such valuers to agree by William Harper of Cardiff or failing him such other person to be appointed by the said valuers and (B) the sum of one thousand pounds and (C) interest on the aforesaid sums at the rate of four per centum per annum from the date of transfer to the date of payment thereof.

(3) After the transfer if the Gelligaer Council shall so require the Council (unless prevented by frost unusual drought or other unavoidable cause or accident or some act or default of the Gelligaer Council) shall supply to the Gelligaer Council water in bulk for supply within the Gelligaer district at the price of fivepence and one halfpenny for each one thousand gallons so supplied Provided that such water shall be supplied from a main or mains of the Council at such point or points as may be agreed between the Council and the Gelligaer Council or as in case of dispute shall be determined by arbitration as in this section hereinafter provided and shall pass through a meter or meters of a type to be approved by the Council and to be provided and maintained by the Gelligaer Council to the

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(4) The Council shall be entitled to lay a main through the Gelligaer district along a route to be reasonably approved by the Gelligaer Council for the purpose of enabling the Council to convey water purchased by them in bulk from the Rhymney Company to the district.

(5) In the event of any dispute or difference arising under this section the same shall be settled by arbitration under the provisions of the Arbitration Act 1889.

Blackwood Gas Company.

Confirma-
tion of agree-
ment with
Blackwood
Company.

12. The agreement dated the twenty-sixth February one thousand nine hundred and twelve and made between the Blackwood Company of the one part and the Council of the other part as set forth in the Second Schedule to this Act is hereby confirmed and made binding on the Blackwood Company and the Council and may and shall be carried into effect accordingly.

Transfer
of under-
taking of
Blackwood
Company.

13. Upon payment of the purchase and other moneys and completion of the sale in accordance with the Blackwood agreement the undertaking of the Blackwood Company shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Council in manner provided by the said agreement and the date of such payment transfer and vesting and such transfer and vesting are in this Act respectively referred to as "the day of transfer" and "the transfer of the undertaking of the Blackwood Company."

Proof of
transfer and
vesting.

14. The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the Blackwood Company or by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Council of the undertaking of the Blackwood Company.

Application
of other
sections of
this Act.

15. The sections of this Act of which the marginal notes are "Receipt for purchase money" and "Books and documents to remain evidence" shall upon the transfer of the undertaking

of the Blackwood Company apply as if there had been inserted therein in lieu of the words "New Tredegar Company" and "transfer" respectively the words "Blackwood Company" and "transfer of the undertaking of the Blackwood Company."

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16. Until the transfer the undertaking of the Blackwood Company shall be maintained and carried on by the Blackwood Company as heretofore in the ordinary course of business but the Blackwood Company shall not without the previous consent of the Council under the hand of the Clerk to the Council incur any capital expenditure (except so far as is provided for by the Blackwood Agreement) or make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works.

Exercise of
Blackwood
Company's
powers
until
transfer.

17. All agreements conveyances contracts deeds and other instruments entered into or made with or by the Blackwood Company and in force at the day of transfer shall be as binding and of as full force and effect in every respect against or in favour of the Council and may be enforced as fully and effectually as if instead of the Blackwood Company the Council had been a party thereto.

Contracts
with Com-
pany to be
binding on
Council.

18. No action suit prosecution or other proceeding whatsoever commenced and no cause of action suit or arbitration prosecution or proceeding pending or existing either by or against the Blackwood Company shall abate or be discontinued or prejudicially affected by reason of the transfer of the undertaking of the Blackwood Company but the same shall continue and take effect either in favour of or against the Blackwood Company in the same manner in all respects as the same would have continued and taken effect in relation to the Blackwood Company if the transfer had not been made and all penalties incurred by reason of any offence against the provisions of any regulations of the Blackwood Company previously to the day of transfer may be sued for and all offences committed against such provisions previously to the day of transfer may be prosecuted in such or the like manner to all intents and purposes as such penalties might have been sued for or such offence prosecuted if the transfer had not taken place and all rents rates and moneys payable to the Blackwood Company prior to the day of transfer may be sued for and recovered by the Blackwood Company in the same manner in

Actions &c.
not to abate
and penalties
to be re-
coverable.

A.D. 1912. all respects as the same might have been sued for and recovered if this Act had not been passed.

Purposes
for which
Blackwood
Company to
continue
incorporated
Winding up
of Black-
wood Com-
pany.

19.—(1) From and after the day of transfer the Blackwood Company shall subsist only for the purpose of paying their debts and liabilities and of receiving and recovering the sums payable to the Blackwood Company as provided by this Act and distributing the same and the purchase money and any other moneys payable to the Blackwood Company in accordance with the provisions of this Act and for winding up the affairs of the Blackwood Company and carrying into effect the purposes of this Act so far as they relate to the Blackwood Company and the directors of the Blackwood Company who are in office at the day of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the Blackwood Company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the Blackwood Company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a person or persons who immediately before the transfer was or were a shareholder or shareholders of the Blackwood Company to fill the vacancy or vacancies so caused.

(2) The directors of the Blackwood Company shall pay and distribute among the several persons who at the day of transfer are the registered holders of shares in the capital of the Blackwood Company or their respective executors administrators or assigns the sum of five hundred pounds part of the purchase and other moneys payable to the Blackwood Company under the Blackwood agreement in making up so far as possible and proportionately as between each class of ordinary shares in the capital of the Blackwood Company the amounts by which the dividends on such shares in respect of the three years ending on the thirty-first day of December one thousand nine hundred and twelve may have fallen short of the maximum rates of dividend prescribed by the Blackwood Gas Act 1909 and after payment of the debts and liabilities of the Blackwood Company shall pay and distribute the remainder of such moneys according to the amount of the maximum dividend payable to each such holder and for the purpose of such distribution the

several persons whose names shall appear in the books of the Blackwood Company on the day of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the Blackwood Company and the receipt in writing of such persons or of their executors administrators or assigns or of the committee of the estate or guardian of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the Blackwood Company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the shares or interest in respect whereof the money is paid. A.D. 1912.

(3) As soon as practicable after the day of transfer the Blackwood Company shall subject to the provisions of this Act be wound up under and in accordance with the provisions of and in the same manner and with the same incidents as if the Blackwood Company were a company registered under the Companies (Consolidation) Act 1908 and had on the day of transfer duly passed a special resolution requiring the Blackwood Company to be wound up voluntarily and for the purposes of such winding up the Blackwood Company shall from and after the passing of this Act be deemed to be registered in England under the said Act and for the purpose of calling and holding meetings and passing resolutions and other matters incident to such winding up resolutions of meetings of the Blackwood Company convened and held in pursuance of and in accordance with the provisions contained in the Blackwood Gas Act 1909 may and shall take effect as resolutions of a company duly registered as aforesaid.

20. From and after the day of transfer the Blackwood Gas Act 1909 shall be and the same is hereby repealed save so far as may be necessary for the purpose of calling and holding meetings of and passing resolutions and other matters incident to the winding up of the Blackwood Company Provided that section 53 (For protection of Great Western Railway Company) and section 54 (For protection of London and North Western Railway Company) of the said Act shall be and the same are hereby excepted from repeal as aforesaid and shall apply and have effect as if therein the Council had been named in lieu of the Blackwood Company. Repeal of Blackwood Gas Act 1909.

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Power to
Mynyddis-
lwyn Council
to purchase
part of gas
undertaking.

21.—(1) If the Mynyddislwyn Council shall in either of the next two available Sessions of Parliament introduce and bonâ fide promote a Bill or apply to the Local Government Board for a Provisional Order authorising the Mynyddislwyn Council to supply gas within any area which shall comprise the portion of the Mynyddislwyn district included within the gas limits of the Council as defined by this Act and to purchase so much of the gas undertaking (including mains pipes and apparatus) of the Council as shall be situate in the said portion of the Mynyddislwyn district (in this section called "the Mynyddislwyn portion of the gas undertaking") the Council shall not oppose any such Bill or Provisional Order except as to the details thereof and if such powers of supply and purchase be granted the Council shall on the 29th day of September next after the passing of such Bill or of the Bill confirming such Provisional Order or at such other date as may be agreed between the Council and the Mynyddislwyn Council (hereinafter referred to as "the date of transfer") sell and transfer to the Mynyddislwyn Council and the Mynyddislwyn Council shall purchase the Mynyddislwyn portion of the gas undertaking freed from all the then existing debentures mortgages obligations and liabilities of the Council and on and after the date of transfer all rights powers and obligations on the part of the Council to supply gas within the Mynyddislwyn district shall cease and determine except as mentioned in subsections (4) and (5) hereof.

(2) The Mynyddislwyn Council shall pay to the Council as the consideration for the purchase of the Mynyddislwyn portion of the gas undertaking (a) the sum of two thousand seven hundred and five pounds (b) a sum equal to the actual expenditure by the Council on the provision of any new gas mains pipes and other works within the said portion of the Mynyddislwyn district between the passing of this Act and the date of transfer such expenditure to be determined in default of agreement by arbitration under this section and (c) interest on the aforesaid sums at the rate of four per centum per annum from the date of transfer to the date of payment thereof respectively.

(3) The Council shall not construct any new gas mains pipes or other works within the Mynyddislwyn district except with the consent in writing of the Mynyddislwyn Council and then only subject to plans and sections to be previously approved

by the surveyor to the Mynyddislwyn Council and under the A.D. 1912.
superintendence of such surveyor.

(4) On and after the date of transfer and until the Mynyddislwyn Council have provided such works for the manufacture of gas as they think requisite for the purpose of supplying gas within the said portion of the Mynyddislwyn district the Council shall supply to the Mynyddislwyn Council at such point or points as may be agreed between the Council and the Mynyddislwyn Council or failing agreement be determined by arbitration under this section and the Mynyddislwyn Council shall take such quantity of gas in bulk as the Mynyddislwyn Council may require for the purpose of supplying gas within the said portion of the Mynyddislwyn district and the Mynyddislwyn Council shall pay to the Council for gas supplied in bulk under this subsection the price of three shillings per thousand cubic feet.

(5) The Council shall also if so required by the Mynyddislwyn Council supply to the Mynyddislwyn Council at such point or points as may be agreed or in default of agreement determined by arbitration under this section such additional quantity of gas as the Mynyddislwyn Council may from time to time require for the purpose of supplying gas in any other portions of the Mynyddislwyn district and the Mynyddislwyn Council shall pay to the Council for any additional quantity of gas which the Mynyddislwyn Council may require to be supplied under this subsection the price of three shillings per thousand cubic feet.

(6) Until the first day of January one thousand nine hundred and fifteen and thereafter if prior to that date a Bill shall be passed or a Provisional Order be confirmed for the purposes referred to in subsection (1) of this section the Council under the powers of the section of this Act of which the marginal note is "Council may contract with local authority for supply in bulk" shall not (except with the consent in writing of the Mynyddislwyn Council) supply gas to any authority company or person for the purpose of distribution or use within any part of the urban district of Mynyddislwyn outside the gas limits of the Council.

(7) Any question by this section required to be determined by arbitration shall be referred to and determined by a single

A.D. 1912. arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

PART III.

SUPPLY OF WATER.

Act to extend to existing undertaking.

22. The provisions of this Part of this Act shall apply to the existing waterworks and water undertakings of the Council and to the waterworks and water undertakings acquired by the Council in pursuance of the provisions of this Act and the said waterworks and water undertakings shall for all purposes be deemed to form part of the water undertaking of the Council under this Act.

Power to maintain existing waterworks.

23. The Council may maintain repair alter enlarge and extend the existing waterworks and mains laid by and belonging to them within the district and the waterworks acquired by them in pursuance of the provisions of this Act and may erect lay down provide and maintain additional and other mains pipes tanks meters buildings works and apparatus and do all other acts and provide all other things in any way connected with waterworks or with the supply of water in such manner as they from time to time think proper and may use the same for the purpose of taking and distributing water and may sell and supply water in accordance with the provisions of this Act.

Water limits.

24. Subject to the provisions of this Act the limits of the Council for the supply of water (in this Act called "the water limits") shall be (A) the district except so much thereof as is comprised within the limits for supply of water of the Tredegar Urban District Council and the Rhymney Company and (B) such part of the Rhymney Valley within the urban district of Gelligaer in the county of Glamorgan as is situate between the Abertwsswg Brook on the north and Cefn Brithdir colliery pit on the south and including the said colliery pit and now included within the limits of supply of the New Tredegar Company except such portion as lies to the north of an imaginary line drawn in an east north-easterly direction across the valley in the urban district of Gelligaer from a point in the road leading from Troedrhiw-y-fuwd to Tirphil one hundred and thirty yards south of the house known as Craig House.

25. The Council shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum hereinafter specified (that is to say):—

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Rates at
which water
is to be sup-
plied for
domestic
purposes.

Where the rateable value of the premises so supplied does not exceed seven pounds ten shillings the sum of three-pence per week:

Where such rateable value exceeds seven pounds ten shillings but does not exceed ten pounds the rate of fourpence per week:

Where such rateable value exceeds ten pounds but does not exceed twenty pounds the rate of ten pounds per centum per annum upon such value:

Where such rateable value exceeds twenty pounds but does not exceed forty pounds the rate of eight pounds per centum per annum upon such value:

Where such rateable value exceeds forty pounds but does not exceed eighty pounds the rate of seven pounds per centum per annum upon such value:

Where such rateable value exceeds eighty pounds the rate of six pounds per centum per annum upon such value.

For the purposes of this section the rateable value shall be the rateable value as ascertained by the valuation list in force at the commencement of the quarter in which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

When the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole premises ascertained as aforesaid the apportionment in case of dispute to be determined by two justices.

Nothing in this section shall entitle the Council in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum than

A.D. 1912. they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

In addition to the rates computed as above specified the Council may demand and take for the supply of water—

For every watercloset beyond the first (for which no additional charge shall be made) on any premises within the water limits a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Supply to
houses partly
used for
trade.

26.—(1) The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

(2) Where a water supply to a farmhouse is used for farming purposes the Council may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Council to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

Contracts
for supply-
ing water
in bulk.

27. The Council may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the water limits to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits.

28. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

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Rates payable by owners of small houses.

29. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the nearest main into each house supplied by them with water.

Council not bound to supply several houses by one pipe.

30. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Notice of discontinuance.

31.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

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Supply by
measure.

32. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes.

Price of
supply by
measure.

33. The price to be charged for a supply of water by measure shall not exceed one shilling and sixpence per thousand gallons.

Register of
meter to be
prima facie
evidence.

34. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Council. Provided that if the Council and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Detection of
waste.

35. Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus. Provided that the Council shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Notice to
Council of
connecting
or discon-
necting
meters.

36. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to

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do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

37. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained :

Penalties for
injuring
meters.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

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Power to
supply
fittings.

38.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Power to
lay pipes in
streets not
dedicated to
public use.

39. The Council may on the application of the owner or occupier of any premises within the water limits abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if such street were a street dedicated to public use.

Provisions as
to houses
without
watersupply.

40. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Limit of
pressure.

41. The water supplied by the Council need not be delivered at a greater height than eleven hundred feet above ordnance datum unless such supply can be afforded by gravitation nor need the water supplied by the Council be constantly laid on under pressure when pumping is required to afford the supply.

Power to
purchase
lands by
agreement

42. The Council may for the purposes of their water undertaking acquire by agreement either in fee simple or for any term or terms of years in addition to lands which they

are already authorised to hold or which they may acquire under the powers of this Act as part of the undertaking of the Company any lands not exceeding in the whole ten acres or any easement right or privilege therein thereunder or, thereon (not being an easement right or privilege of water in which persons other than the grantors have an interest) but the Council shall not create or permit a nuisance on any lands acquired under the powers of this section and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking. A.D. 1912.
for water
purposes.

43. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons un-
der disability
may grant
easements
&c.

44. The Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting
powers of
Council to
abstract
water.

45. The Council may hold any lands acquired by them which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of the Lands Clauses Acts but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than such buildings and works as may be incident to or connected with their waterworks. Power to
hold lands
for pro-
tection of
works.

46. The Council may purchase water in bulk from any authority company or person having statutory authority to sell the same and may enter into and carry into effect agreements for that purpose upon such terms and conditions as they may Power to
purchase
water in
bulk.

A.D. 1912. think fit and any water so purchased may be used by the Council for the purposes of supply under this Act but nothing in this section shall authorise the Council to lay any mains or interfere with any street beyond their limits of supply.

As to commencement of this Part of Act. 47. This Part of this Act shall come into operation on and from the transfer.

PART IV.

SUPPLY OF GAS.

Gas limits. 48. Subject to the provisions of this Act the limits of the Council for the supply of gas (in this Act called "the gas limits") shall be—

(A) the district except so much thereof as is comprised within the limits of supply of gas of the Rhymney Company and in which that company now supply gas ;

(B) such part of the Rhymney Valley within the urban district of Gelligaer in the county of Glamorgan as is situate between the Abertwsswg Brook on the north and Cefn Brithdir colliery pit on the south and including the said colliery pit and now included within the limits of supply of the New Tredegar Company ; and

(C) such part of the urban district of Mynyddislwyn as is within the area of supply of the Blackwood Gas Company as defined by the Blackwood Gas Act 1909.

Powers as to maintenance of gasworks. 49. Subject to the provisions of this Act the Council may from time to time after the transfer maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in the First Part of the Third Schedule to this Act and also from and after the transfer of the Blackwood undertaking upon the lands upon which the Blackwood Company are authorised by the Blackwood Gas Act 1909 and described in the Second Part of the Third Schedule to maintain gasworks so far as the same are for the time being vested in the Council and they may also on the said lands erect lay down provide and maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps

lamp-posts burners stopcocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the gas limits and may make store and supply gas accordingly and may convert manufacture and sell all residual products resulting from the manufacture of gas by them but the Council shall not purchase or use in any process of manufacture any materials other than those required for the making and supply of gas by them or for the working up of their own residual products or for the construction maintenance and repair of their gasworks plant and buildings or for the maintenance and repair of gas fittings Provided always that no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands above described.

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50. The Council may for the purposes of their gas undertaking purchase take and hold by agreement in addition to the lands comprised in the undertakings to be acquired by them from the New Tredegar and the Blackwood Companies respectively any lands not exceeding in the whole three acres which the Council may require for the purposes of their works and undertaking but the Council shall not create or permit a nuisance on any such last-mentioned lands or use any lands for the purpose of manufacturing gas or residual products except the lands described in the Third Schedule to this Act.

Power to purchase lands by agreement for gas purposes.

51. The price to be charged by the Council for gas supplied by them to persons who shall burn the same by ordinary meter shall not at any time exceed the sum of five shillings per thousand cubic feet for gas supplied within so much of the urban district of Gelligaer as is comprised within the gas limits of the Council or for gas supplied within a radius of one mile and a quarter from the gasworks of the Council and the sum of five shillings and sixpence for gas supplied elsewhere within the gas limits of the Council.

Limit of price.

52. The price to be charged by the Council for gas supplied by them for public lighting shall not at any time exceed the sum of four shillings per thousand cubic feet within so much of the urban district of Gelligaer as is comprised within the gas limits of the Council and the sum of four shillings and sixpence per thousand cubic feet within a radius of one mile and a quarter from the gasworks of the Council

Price of gas for public lighting.

A.D. 1912. and the sum of five shillings per thousand cubic feet elsewhere within the gas limits of the Council.

Charge for
gas supplied
by means of
prepayment
meters.

53.—(1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the gas limits through any other kind of meter or by any other method of supply.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

Quality of
gas.

54. The prescribed number of candles shall be not less than fourteen.

Testing
place.

55. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Council on any part of their gasworks.

Testing of
quality of
gas.

56.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871.

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(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Council shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

57.—(1) All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. Pressure.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Council shall afford to the examiner all reasonable facilities for making the test.

58. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Council. Saving as to penalties.

59. The Council may upon the application of the owner or occupier of any premises within the gas limits abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street or road such pipes and other works as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Power to lay pipes in streets not dedicated to public use.

A.D. 1912. Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply to and for the purposes hereof.

As to construction and placing of pipes &c. between mains and meters.

60. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Council's mains and the meter so far as such pipes and fittings are intended to be covered over:
- (2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper (or once in each of two newspapers) circulating within the gas limits and a copy thereof shall be kept exhibited in the office of the Council:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building:
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council. Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are

not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with: A.D. 1912.

- (6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

61. If any person is required by the Council to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Council shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Council to pay interest on money deposited as security for gas meter.

62.—(1) The Council may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Power to supply gas fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof:

Provided as follows:—

- (A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing

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repairing or removal thereof as to meet any expenditure by them under the powers of this section in connection therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed) :

(B) Every sum charged by the Council in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer :

(c) The total sums expended and received by the Council in connection with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the gas undertaking of the Council for that year.

Gas consumers to give notice to Council before removing.

63. At least twenty-four hours' notice in writing shall be given to the Council by every gas consumer before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Council.

Power to refuse supply to persons in debt for other premises.

64. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

65. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Power to enter premises and remove fittings.

66. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Council by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in

which any person entering into occupation of any premises previously supplied with gas by the Council shall not require to take a supply of gas from the Council or to hire from the Council all or any of the pipes meters fittings or apparatus belonging to the Council and let by them on hire to any former occupier of such premises. A.D. 1912.

67.—(1) Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Council may cease to supply him with gas. Power to require use of anti-fluctuators for gas engines.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

68. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Council. Period of error in defective meters.

69. The Council may subject to the provisions of this Act contract with any local authority company or persons supplying gas under parliamentary powers in any district adjacent to the gas limits for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Council to lay any mains or interfere with any street beyond the gas limits. Council may contract with local authority for supply in bulk.

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PART V.

STREETS AND BUILDINGS.

Council
may define
future line
of streets.

70.—(1) Where any street or road repairable by the inhabitants at large is in the opinion of the Council narrow or inconvenient or without any sufficiently regular line of frontage or where in their opinion it is necessary or desirable that the line of frontage should be altered the Council may from time to time prescribe and define what shall thereafter be the line of frontage to be observed on either side of such street or road. The line which in any case the Council propose to prescribe and define shall be distinctly marked and shown on a plan to be signed by the chairman or clerk to the Council and deposited with the surveyor and such plan shall be at all reasonable times thereafter open for the inspection of the public without charge and one month at least before the Council formally prescribe and define the line they shall give notice in writing of the deposit of the said plan to every owner interested whose name and address they can ascertain. No new building erection excavation or obstruction (being of a permanent character) shall be made nearer to the centre of the street or road than such line.

(2) The Council may and if required so to do by the owner shall purchase and the owner shall if required so to do by the Council sell the land for the time being unbuilt upon lying between any such line as aforesaid and the street or road and the same when purchased shall vest in the Council as part of the street or road and the amount of purchase money shall in case of difference be settled by arbitration under the Arbitration Act 1889.

(3) Whenever in any of the above cases the Council shall require the said line to be observed and kept they shall make full compensation to the owner and other persons interested in any land for any loss or damage they may sustain in consequence of the line of frontage being set back and the Council shall also make to the owner of any adjoining land or building and to all other persons interested in any such adjoining land or building full compensation in respect thereof for all damage loss or injury (if any) sustained by them to such land or building by reason of the Council requiring the said line to be observed and kept.

(4) In estimating the amount of compensation or purchase money to be paid by the Council under this section the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of the street or road shall be fairly estimated and shall be set off against the said compensation or purchase money. A.D. 1912.

(5) If after any such line has been defined and prescribed as aforesaid any person offends against the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

71. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street. Continuation of existing streets to be deemed new streets.

72.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof. No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

73. When a road or lane becomes in consequence of building operations a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is in course of being built on the Council may instead of requiring the owner of the land built on or in course of being built on to widen such road or lane to a width prescribed by the byelaws in force in the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that if and when the land on the opposite side of such road or lane shall be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council. The provisions of this section shall not extend or apply to any building (not being a dwelling- Further provisions as to new streets and widenings.

A.D. 1912.

house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament nor to any land upon which such building is erected or in course of being erected.

For preventing soil sand and other débris from being washed into streets.

74.—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other débris of such lands from falling upon or being washed or carried into any street repairable by the inhabitants at large sewer or gully in such quantities as will obstruct or choke up such sewer or gully or flood the houses in such street.

(2) If any person shall for one month after notice in writing from the Council fail in any respect to comply with the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For preventing water flowing on footpath.

75. Where houses abutting upon any street are so situate that the surface water from the curtilages of such houses flows on to the footpath of such street the owner of such houses shall within one month after service of an order of the Council for that purpose execute such works as may be reasonably practicable to prevent the water from the curtilages of such houses from flowing over the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

Prevention and removal of projections over streets.

76. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street.

Elevation of buildings erected on front lands to be subject to approval of Council.

77. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Council becomes front land shall be erected according to such elevation as the Council approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes

any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Council and in case the Council for a space of six weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Council shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence. A.D. 1912.

78.—(1) In the case of any building to be connected with any sewer and intended to be erected on lands where by reason of mining operations subsidences may be reasonably expected to occur the Council may regulate and prescribe the level at which the ground floor of any such building is to be constructed and at the time of the deposit of plans and sections of any such building the Council may require any person intending to construct the same to specify the proposed level of the ground floor thereof. Construction of buildings on lands liable to subsidence.

(2) Any person failing to comply with the requirements of the Council under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

79.—(1) Every new dwelling-house shall be provided with at least one living room with a floor area of not less than one hundred and fifteen square feet and one bedroom with a floor area of not less than one hundred and ten square feet. Area of habitable rooms.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than seventy square feet.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

80.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining Erection of buildings to greater height than

A.D. 1912. building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

adjoining
buildings.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty of forty shillings.

Forecourts
to be fenced
off from
streets.

81. Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street and any person who shall offend against this enactment shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Power to lay
drains in pri-
vate streets.

82. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Trees or
shrubs over-
hanging
streets and
footpaths.

83.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary

jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Council under this section. A.D. 1912.

84. The owner or owners of premises the occupiers of which use in common any court yard or passage (not being a highway repairable by the inhabitants at large) or any part of such court yard or passage shall flag asphalt concrete or pave such court yard or passage or any part thereof and make a drain through or along the same or such part thereof as the Council require and keep such flagging asphaltting concreting or paving and drain in good repair and if such owner or owners for one month after notice in writing from the Council fail in any respect to comply with this provision he or they shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings and the Council may themselves if they think fit do the work and recover the expense incurred by them in that behalf from such owner or owners summarily. Courts to be flagged.

85.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto. Means of escape from buildings in case of fire.

(2) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(3) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

A.D. 1912.

Regulation
dustbins.

86. The Council may by notice in writing require the occupier of any dwelling-house to provide galvanised iron (or enamelled iron) dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council and any occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not authorise the Council to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition.

Exemption
of buildings
of railway
companies.

87. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connection with their railway under any Act of Parliament.

PART VI.

SEWERS AND DRAINS.

Provision as
to separate
system of
sewerage.

88.—(1) The Council may by resolution declare that any sewer for the time being belonging to them shall thenceforth be appropriated and used for sewage (in this section called a "sewage sewer") and they may also declare that any other sewer for the time being belonging to them shall thenceforth be appropriated and used for surface water (in this section called a "surface water sewer").

(2) Where under the provisions of any Acts for the time being in force in the district the Council have power to require any street to be sewered they may require the provision of separate sewage sewers and surface water sewers and the provisions of those Acts shall apply to such sewers accordingly:

Provided that the provisions of this subsection shall not be exercised unless and until the Council shall have provided sewers adequate and proper for the purpose of receiving the sewage from such separate sewage sewers and shall have provided sewers or other outlets adequate and proper for the purpose of receiving the surface water from such separate surface water sewers.

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(3)—(A) Where in any street separate sewage sewers and surface water sewers shall have been provided (whether before or after the passing of this Act) no sewage shall be allowed to pass from any premises into the surface water sewers and so far as practicable no surface or storm water other than from back roofs and paved yards of domestic dwellings shall be allowed to pass into the sewage sewers except with the consent in writing of the Council:

(B) Any person who shall offend against the provisions of this subsection shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings:

(C) Provided that in the case of any premises existing at the time of the provision of separate sewers the drains whereof were already connected with a sewer and would but for the provisions of this section have been sufficient to effectually drain such premises the provisions of this subsection shall not apply to such premises until the Council have at their own expense made all necessary alterations to the drains and pipes of such premises in order to keep separate the sewage and surface water drainage thereof and the Council may if they think fit make all such alterations.

89. If in any street not repairable by the inhabitants at large the Council for the purpose of main drainage or otherwise shall require a larger sewer to be made than they consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Council and the additional cost thereof as ascertained by the surveyor shall be paid by the Council.

Council may
require en-
larged sewer.

90.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of a sufficient size already exists or is about to be constructed within one hundred feet of any part of such houses the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and of the repair and maintenance thereof shall be apportioned between the owners of such houses in such

Council may
order houses
to be drained
by a com-
bined drain.

A.D. 1912. manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners summarily as a civil debt.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by the Council except with the consent of the owner or owners of the said house.

Council may
make com-
munications
between
drains and
sewers.

91. If the owner or occupier of any premises desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Council such communication shall be made by the Council upon the cost or estimated cost of making the communication being paid to the Council or the payment thereof to them being secured to their satisfaction and the Council may execute all works necessary for that purpose.

Soil pipes
to be venti-
lated.

92.—(1) The soil pipe of any watercloset within a house or building shall be properly ventilated by means of a pipe carried up therefrom or by such other method as the Council shall direct.

(2) Any owner or occupier of such house or building who shall neglect or fail to comply with any requirement of the Council under this section for a period of twenty-eight days after notice in writing of such requirement and the mode in which the same is to be complied with shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Penalty for
damage to
drains.

93. If any person causes any drain watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds:

Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act. A.D. 1912.

94.—(1) On complaint made on oath by the surveyor medical officer or the inspector of nuisances that he or they have reasonable grounds for believing the existence of a nuisance any justice may grant a warrant to the surveyor medical officer or inspector of nuisances to jointly or severally inspect any water supply sink trap syphon pipe or other work or apparatus and on such warrant being granted the surveyor medical officer or inspector of nuisances or their authorised assistants (on production of their authority if so required) at all reasonable times in the daytime after not less than twenty-four hours' notice in writing has been given to the occupier of the premises to which such water supply sink trap syphon pipe or other work or apparatus is attached or if they are unoccupied to the owner or if such owner or occupier is not known or cannot be found left on such premises may enter and cause the ground to be opened wherever the surveyor medical officer or inspector of nuisances think fit doing as little damage as may be. Power to inspect sanitary apparatus and require repairs.

(2) If any person obstructs or attempts to obstruct or incites any person to obstruct the surveyor medical officer or inspector of nuisances or assistants in the exercise of any of the powers conferred by this section he shall for every such offence be liable to a penalty not exceeding five pounds.

(3) If any such water supply sink trap syphon pipe or other work or apparatus be found on inspection to have been properly made in accordance with the Acts and byelaws in force within the district and in proper order and condition the Council shall cause the same to be reinstated and made good as soon as may be and the expenses of examining reinstating and making good the same shall be defrayed by the Council and full compensation shall be made by them for all damage or injury done or occasioned by such examination.

(4) If any such water supply sink trap syphon pipe or other work or apparatus be found on inspection as aforesaid not to have been properly made as aforesaid or to be in bad order and condition and to require cleansing alteration or amendment the Council shall cause notice to be served on the owner or

A.D. 1912. occupier of the premises upon or in respect of which the inspection was made requiring him forthwith or within a reasonable time specified in the notice to do what is necessary to place the work in proper order and condition.

(5) If such notice is not complied with the said owner or occupier shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Council if they think fit in lieu of proceedings for a penalty may enter on the premises and execute the works and may recover the expenses incurred by them in so doing from the person in default in a summary manner.

Improper
construction
or repair of
watercloset
or drain.

95. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds. Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Notice of
intention to
repair drains.

96.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the medical officer twelve hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the inspector of nuisances or any officer of the Council authorised in writing by the medical officer for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

97.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation sufficient water or other closets and urinals.

A.D. 1912.
Sanitary
conveni-
ences for
workmen
engaged on
buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds.

98. Every person who throws casts deposits or by any other means conveys or causes to be conveyed any solid matter whatsoever into any stream or brook within the district so as to interfere with the due flow of such watercourse shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. For the purposes of this section particles of matter in suspension in water arising from coal washing or coke cooling shall not be deemed to be solid matter.

Penalty for
throwing
rubbish into
streams.

99. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Penalty on
occupiers
refusing
execution
of Act.

PART VII.

INFECTIOUS DISEASE AND OTHER PROVISIONS.

100. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that

Compensa-
tion to
dairymen.

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A.D. 1912. the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage.

Compensation to persons ceasing employment.

101. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Persons to furnish names of laundrymen to whom clothes are sent from infected houses.

102.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who offends against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

Information to be furnished to medical officer and penalty for furnishing false information.

103.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

104.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who—

A.D. 1912.
For regu-
lating manu-
facture and
sale of ice-
cream.

(A) Causes or permits ice-cream or other similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain ; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination ; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer ;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice-cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry

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A.D. 1912. of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Prohibition
of blowing
or inflating
carcases.

105.—(1) It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the district.

(2) Any person who shall offend against the provisions of subsection (1) of this section or shall expose or deposit for sale within the district a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

Power to
close pol-
luted wells.

106.—(1) On the representation of any person to the Council that the water in any well tank or cistern whether public or private or supplied from any public pump is used by man for drinking or domestic purposes or for manufacturing drink for the use of man and is so polluted as to be injurious or dangerous to health a petty sessional court on complaint by the Council and after hearing the person who is the owner or occupier of the premises to which the well tank or cistern belongs if it be private or in the case of a public well tank cistern or pump is alleged in the complaint to be interested in the same or after giving him an opportunity of being heard may by summary order direct the well tank cistern or pump to be permanently or temporarily closed or make such other order as appears to the court requisite to prevent injury or danger to the health of persons drinking the water.

(2) The court may if they see fit cause the water complained of to be analysed at the cost of the Council.

(3) If the person on whom the order is made fails to comply therewith he shall be liable to a fine not exceeding twenty pounds and a petty sessional court on complaint by the Council may authorise the Council to execute the order and any expenses incurred by them in so doing may be recovered in a summary manner from the said person.

Offensive
trades.

107. For the purposes of section 112 (Restriction on establishment of offensive trade in urban district) of the Public Health Act 1875 a trade business or manufacture shall be deemed to be

established not only if it is established anew but also if it is removed from any one set of premises to any other premises or if it is renewed on the same set of premises after having been discontinued for a period of six months or upwards or if any premises on which it is for the time being carried on are enlarged without the sanction of the Council but a trade business or manufacture shall not be deemed to be established anew on any premises by reason only that the ownership of such premises is wholly or partially changed or that the building in which it is established having been wholly or partially pulled down or burnt down has been reconstructed without any extension of its area.

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108.—(1) At any time after the passing of this Act the Council may—

Slaughtering
prohibited
except in
Council
slaughter-
houses when
provided.

(A) Acquire by agreement any premises within the district used for the purpose of slaughtering cattle (hereinafter referred to as a "slaughter-house") and the interest or interests of any owner lessee and occupier of such premises ;

(B) Agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Council have provided adequate slaughter-houses in convenient positions (to the satisfaction of the Local Government Board) and after the expiration of six calendar months from the date of publication by the Council in a local newspaper circulating in the district of notice to that effect no person shall slaughter in the way of trade any cattle within the district except in slaughter-houses provided by the Council but this shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle belonging to him and not slaughtered for the purpose of trade and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds :

Provided that nothing in this section shall prevent a farmer from slaughtering on land occupied by him for agricultural purposes only any cattle belonging to him but no part of the carcase of any animal so slaughtered by a farmer shall be

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A.D. 1912. removed from the farm until after inspection by the medical officer or the inspector of nuisances such inspection to be made within a reasonable time.

(3) The Council shall pay compensation to the owner lessee and occupier of every slaughter-house who may be injuriously affected by the exercise of the above powers or who may agree to discontinue as a slaughter-house any building owned leased or occupied by him and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly.

(4) The fees and charges to be demanded and received by the Council in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Local Government Board and the Council may make byelaws accordingly.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Board of Agriculture and Fisheries made or granted thereunder.

Public notice
to be given
of provisions
of this Part
of Act.

109.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VIII.

FINANCIAL PROVISIONS.

Power to
borrow.

110.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say) :—

(A) For the purchase of the undertakings of the New Tredegar Company and the Blackwood Company and for paying any sums payable by the Council to either

of those companies under the agreement set forth in the First and Second Schedules to this Act and for defraying the costs and expenses incident to such purchases and to the transfer of such undertakings to the Council (other than the costs of this Act) such sum or sums as may be necessary: A.D. 1912.

(B) For the extension and improvement of the gasworks undertaking and waterworks undertaking of the Council and for working capital such sums as the Local Government Board may sanction:

(c) For paying the costs and expenses of this Act the sum requisite for that purpose.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the securities hereinafter specified (that is to say):—

As regards purposes (A) in this section hereinbefore mentioned as to twelve thousand eight hundred and twenty-eight pounds part of the sum of twenty-three thousand four hundred and fifteen pounds payable to the New Tredegar Company under the agreement set forth in the First Schedule to this Act and as to such proportion of any other moneys payable under the said agreement or of the costs and expenses aforesaid as shall be properly attributable to the waterworks undertaking (all of which moneys are in this Act hereinafter called “waterworks purchase moneys”) the revenue of the waterworks undertaking and the district fund and general district rate and as to ten thousand five hundred and eighty-seven pounds the remaining part of the said sum of twenty-three thousand four hundred and fifteen pounds and the sum of twenty-three thousand three hundred pounds payable to the Blackwood Company and as to such proportion of the other moneys payable as aforesaid and also any other moneys payable under the agreement set forth in the Second Schedule to this Act or of the costs and expenses as aforesaid as shall be properly attributable to the gasworks undertaking (all of which moneys are in this Act hereinafter called “gasworks purchase moneys”) the revenue of the gasworks undertaking and the district fund and general district rate:

A.D. 1912: As regards purpose (c) in this section hereinbefore mentioned as to one half thereof the revenue of the waterworks undertaking and the district fund and general district rate and as to the other half thereof the revenue of the gasworks undertaking and the district fund and general district rate.

Power to borrow additional moneys with consent of Local Government Board.

111. The Council independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow at interest such further moneys as may be required for any of the purposes of the gas undertaking on the security of the revenue of the gas undertaking and the district fund and general district rate and for any of the purposes of the water undertaking on the security of the revenue of the water undertaking and the district fund and general district rate and for any other of the purposes of this Act on the security of the district fund and general district rate Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

Certain provisions of Public Health Acts not to apply.

112. In calculating the amount which the Council may borrow under the provisions of the Public Health Acts any sums which the Council may borrow under or for the purposes of this Act shall not be reckoned and the power of the Council of borrowing and reborrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Mode of raising money.

113. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Provisions as to mortgages.

114. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall (subject to the provisions of the section of this Act the marginal note of which is "Power

to use one form of mortgage for all purposes”) apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act. A.D. 1912.

115.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver : Appoint-
ment of
receiver.

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

116. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof. Protection of
lenders from
inquiry.

117. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed periods”) following (that is to say) :— Periods for
repayment
of money
borrowed.

As to moneys borrowed for the waterworks purchase moneys mentioned in the section of this Act the marginal note whereof is “Power to borrow” within forty-five years from the date or dates of the borrowing of the same;

As to moneys borrowed for the gasworks purchase moneys in the said section mentioned within thirty-five years from the date or dates of the borrowing of the same;

As to moneys borrowed for the purpose (c) in the said section mentioned within five years from the date of the passing of this Act;

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

118. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal Mode of pay-
ment off of
moneys bor-
rowed.

A.D. 1912. and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

119.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest

which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1912.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the

A.D. 1912. sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Power to
use sinking
fund in-
stead of
borrowing.

120.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the power conferred on them by this section shall— A.D. 1912.

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund;

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and reborrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

121.—(1) For the purpose of providing temporarily during any financial year for the current expenses of their water or gas undertaking and after the commencement of such year it shall be lawful for the Council to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in the aggregate at any time an amount equal to one fourth of the total amount of the before mentioned expenses for the immediately preceding financial year and any amount so borrowed shall form a charge upon the revenue

As to temporary borrowing.

A.D. 1912. of the water or the gas undertaking (as the case may be) *pari passu* with any bond or mortgage affecting the same and it shall further be lawful for the Council to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve Provided that--

- (A) All sums so borrowed in respect of the current expenses of any financial year shall be repaid before or within two months after the expiry of such year out of the revenue of such year;
- (B) The clerk shall within three months after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require;
- (c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of four years from the thirty-first day of March one thousand nine hundred and twelve unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

122.—(1) The Council shall have power—

A.D. 1912.

- (A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
reborrow.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have the power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

123.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

Power to use
one form of
mortgage for
all purposes.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be

A.D. 1912. sealed with the common seal of the Council and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the principal sums and interest secured by mortgages granted under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Fourth Schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Council a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere

the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee. A.D. 1912.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

124. The Council shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan borrowed given or issued by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register and the Council shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money. Council not to regard trusts or bound to see to application of moneys.

125.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such Return respecting sinking fund to Local Government Board.

A.D. 1912. a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest have been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Expenses of
executing
Act.

126. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund

or general district rate Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable. A.D. 1912.

127.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for
fixing equa-
ted periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

128. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended Provided that Application
of money
borrowed.

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Act, 1912.

A.D. 1912. moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the consent of the Local Government Board determine.

Application
of moneys
arising from
sale of lands.

129. Unless the Local Government Board otherwise direct the Council shall apply all moneys received by them in respect of any sales exchanges or disposition of lands works or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act and any other moneys received by the Council on capital account under this Act in or towards paying off any moneys borrowed and for the time being owing by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council on capital account Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Application
of revenue
and de-
ficiency of
receipts in
respect of
water under-
taking.

130.—(1) The Council shall apply all money received by them in respect of their water undertaking (except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account) in manner and in the order following (that is to say):—

First In payment of the working and establishment expenses and cost of maintenance of the undertaking;

Secondly In payment of the interest on moneys borrowed for the purposes of the undertaking;

Thirdly In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking;

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at

compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

A.D. 1912.

And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the water undertaking of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

131.—(1) The Council shall apply all money received by them in respect of their gas undertaking (except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account) in manner and in the order following (that is to say):—

Application
of revenue
and de-
ficiency of
receipts in
respect of
gas under-
taking.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking ;

Secondly In payment of the interest on moneys borrowed for the purposes of the undertaking ;

Thirdly In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking ;

Fourthly In extending and improving (if the Council think fit) any works for the purposes of the undertaking ;

A.D. 1912.

Fifthly In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the gas undertaking of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

Separate
water and
gas accounts
to be kept
and audited.

132.—(1) The Council shall keep the accounts in respect of their water undertaking and the accounts in respect of their gas undertaking separate from all their other accounts distinguishing therein capital from revenue and for the purpose of this section moneys borrowed on the security of the water or the gas undertaking under the section of this Act of which the marginal note is "Power to borrow" shall be fairly apportioned between the water undertaking and the gas undertaking.

(2) Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

133.—(1) The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Council to subscribe to any hospital infirmary nursing institution or other institution of a similar character any sum not exceeding in the whole twenty-one pounds per annum.

A.D. 1912.
Power to
Council to
subscribe to
hospitals
and other
institutions.

(2) The Council may pay out of the district fund or general district rate as expenses incurred by them under the Public Health Acts reasonable subscriptions not exceeding in the whole twenty-one pounds in any one year in aid of local units of the Territorial forces rifle clubs and other institutions established in or connected with the district for the purpose of rendering national or public services.

PART IX.

MISCELLANEOUS.

134. It shall not be lawful in any street in the district to use any vehicle exclusively or principally for the purpose of displaying advertisements without the consent of the Council which consent shall be in writing and may be for such time and contain such terms and conditions as the Council think fit Any person who acts in contravention of the provisions of this section or who violates any conditions made or the terms of any consent given in pursuance of such provisions shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings Any person aggrieved under this section by the refusal of the Council to give such consent or by the terms or conditions attached to such consent may appeal to a court of summary jurisdiction within three clear days after the decision of the Council is notified to him in writing under the hand of the clerk provided he gives twenty-four hours' notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as they think fit.

Restrictions
on advertis-
ing vehicles.

135. The following provisions for the protection of the London and North Western Railway Company the Great Western Railway Company and the Rhymney Railway Company (hereinafter referred to as "the railway companies") shall be in force and have effect:—

For pro-
tection of
railway
companies.

In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across

A.D. 1912.

over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by any of the railway companies or the bridges approaches viaducts stations or other works or any level crossings over the railways of such railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the respective railway company and only according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Council who also shall restore and make good the roads over any such bridges level crossings and approaches which the respective railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council and all such works matters and things shall be constructed executed and done so as not to cause any injury to the railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over the railways of any of the railway companies or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Council shall make compensation in respect thereof to the respective railway company :

Any dispute or difference which may arise between any of the railway companies and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of any such railway company and the Council or either of them in accordance with the provisions of the Arbitration Act 1889.

Power to
grant gra-
tuities in
certain cases.

136.—(1) The Council may if they think fit in cases not within the Workmen's Compensation Act 1906 grant a gratuity of any sum (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or

to the widow or family of any such officer or servant who may die in their service. A.D. 1912.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

137. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in case of sale either in consideration of the execution of works or the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired by them under this Act and may sell and exchange and dispose of any rents reserved on the sale lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Power to
retain and
sell lands.

138. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

In execut-
ing works
for owner
Council not
liable for
damages
save in case
of negli-
gence.

139.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred on them or the giving of any consents under this Act and their inspectors shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

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(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Informations
by whom to
be laid.

140. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk.

Evidence
of appoint-
ments and
authority.

141. Where in any legal proceedings taken by or on behalf of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be *primâ facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authenti-
cation and
service of
notices &c.

142. In the case of any notice or demand under this Act requiring authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. Notices orders and any other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Confirmation
of byelaws.

143. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

144. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

A.D. 1912.
As to appeal.

145. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs damages and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs damages or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

146. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

147. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Damages
and charges
to be settled
by justices.

148. All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be carried by him to the credit of the district fund or to such other fund as the Council direct.

Penalties to
be paid over
to treasurer.

149. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for

Determina-
tion of com-
pensation.

[Ch. 1.] *Bedwellty Urban District Council* [2 & 3 GEO. 5.]
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A.D. 1912. such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts.

Persons acting in execution of Act not to be personally liable.

150. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council.

Saving for indictments.

151. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges not disqualified.

152. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Powers of Act cumulative.

153. All the powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Crown rights.

154. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

For protection of Viscount Tredegar.

155. For the protection of the Right Honourable Godfrey Charles Viscount Tredegar and his sequels in estate or other the owner or owners for the time being of the Tredegar settled

estates (hereinafter referred to as "the owner") the following provisions shall have effect (that is to say):— A.D. 1912.

In the event of the owner desiring to stop up or discontinue the user of any street or road laid out or made upon any lands of the owner but not dedicated to public use in which street or road any mains pipes or works have been laid by the Council under the provisions of either of the sections of this Act of which the marginal notes are "Power to lay pipes in streets not dedicated to public use" otherwise than on the application or with the consent in writing of the owner the Council shall on notice in writing from the owner requiring them so to do take up and remove such mains pipes and works and to the satisfaction of the owner fill in the ground opened or broken up for that purpose and on the expiration of one month from the receipt of such notice the powers of the Council under the said sections shall in respect of such street or road cease and determine.

156. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 and the costs charges and expenses preliminary to and of and incidental to preparing for the Bill promoted by the Council in the session 1911 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act. Costs of Act.

A.D. 1912. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

AN AGREEMENT made the 26th day of September 1910 between THE NEW TREDEGAR GAS AND WATER COMPANY LIMITED whose registered office is at the Ruppera Hotel New Tredegar in the county of Monmouth (hereinafter called "the Company") of the one part and THE URBAN DISTRICT COUNCIL OF THE URBAN DISTRICT OF BEDWELLY in the county of Monmouth (hereinafter called "the Council") of the other part.

WHEREBY it is agreed as follows:—

1. The Company shall sell and the Council shall purchase as a going concern the whole of the undertaking of the Company with all and singular their real and personal property of whatever tenure goodwill assets and effects belonging thereto except such sums of money as may be in any bank to the credit of the Company on any account or as may be in the hands of the Company or as may be due to the Company in respect of gas and water rates or rents or other debts due or owing or accruing due to them up to the day of transfer The said undertaking of the Company shall include—

- (A) All the waterworks reservoirs streams springs waters water supplies sources of supply main pipes apparatus and other works and conveniences and also all gasworks plant holders and purifiers and gas apparatus and utensils mains pipes and other works and conveniences relating thereto with all land and buildings estates rights interests easements privileges securities books writings chattels and effects and other real and personal and mixed estates of the Company (but so that the Company may retain such books and documents as may be necessary to enable them to collect moneys due to them up to the end of the quarter next preceding the day of transfer);
- (B) All agreements as to or concerning the sale or supply of water or gas by or to the Company and every agreement existing on the day of transfer and all claims and demands powers

and authorities whatsoever of or to which the Company on the day of transfer is seised or possessed or is otherwise entitled at law or equity with the appurtenances and (subject as hereinafter appears) the profits of the undertaking as and from the day of transfer and where necessary for the purpose of giving effect to this agreement all revenue due to the Company up to the day of transfer and all outgoings parochial rates rents and taxes shall be apportioned between the Company and the Council.

A.D. 1912.

2. The day of transfer shall be the fifteenth day of August 1911 and the Council shall on that day pay to the Company the purchase money hereinafter mentioned and the Company shall thereupon on that day give possession of the undertaking to the Council and the Company shall save as hereinafter mentioned carry on their business as heretofore at their own risk and for their own profit up to the day of transfer.

3. The Company shall pay all the debts and liabilities of or attaching to the undertaking up to the day of transfer.

4. The Company shall collect on their own behalf and for their own benefit all arrears of gas and water rents and other moneys which shall be due to them up to the end of the quarter next preceding the day of transfer and the Council shall collect the gas and water rents and other moneys which shall accrue during the quarter current at the day of transfer and pay to the Company the proportion thereof which shall accrue in respect of the period of such current quarter up to and including the day of transfer.

5. The Company shall on the day of transfer save as aforesaid deliver to the Council all works deeds agreements counsels and engineers opinions and reports plans descriptions of works vouchers letters books and other records of the business and proceedings of the Company and originals or copies of all other documents drafts or writings whether in the possession of the Company or of their solicitors agents resident engineer or consulting engineer.

6. In consideration of the transfer of the Company's undertaking the Council shall pay to the Company on the day of transfer the sum of £23,415 in cash.

7. The Company shall not less than fourteen days after the passing of the Act confirming this agreement submit the accounts of the Company for examination to the clerk or treasurer of the Council.

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Act, 1912.

A.D. 1912.

8. The Company shall manage the undertaking until the day of transfer and shall keep and deliver up the same in fair working order as a going concern and will keep up the works as a going concern in the ordinary and proper course of the affairs of the Company.

9. The Company shall not permit or allow the stores of the Company to become reduced below the value of £200 and the Council shall take over and pay for at cost price the balance of such stores beyond the value of £200 which may be handed over by the Company on the day of transfer.

10. If from any cause other than wilful default of the Company the transfer is not completed on the day of transfer the Company shall be entitled to carry on the said undertaking and to retain the profit thereof up to the date of actual completion.

11. On and after the completion of the transfer the Company shall subsist only for the purpose of winding up their affairs.

12. The Council shall take over into their employment the present manager of the Company if he shall be in the Company's employ at the date of transfer unless fourteen days before the day of transfer he signifies in writing to the Council that he is unwilling to serve under them on the same basis as to his position and emoluments as to those in which he was employed by the Company on the 22nd day of August 1910.

13. The Council shall promote and use its best endeavours to procure the passing in the next session of Parliament of a Bill with such clauses as may be necessary to carry this agreement into effect and the Company shall at the expense of the Council aid and assist the Council in obtaining the said intended Act and in furtherance of this object shall supply to the Council at the like expense such information particulars and evidence in the possession of the Company or of any of their servants as the Council will reasonably require and the Company by themselves officers and servants shall support the Bill by evidence or otherwise if need be.

14. This agreement is subject to the approval of Parliament and to such alterations as shall be made by Parliament therein and shall be scheduled to the Bill to be promoted by the Council in the next session of Parliament but in the event of either House of Parliament making any material alteration in this agreement it shall be competent to either party to withdraw from the same.

15. If the Bill to be promoted by the Council be not passed by Parliament in the next session it shall be competent for the Council to renew the application in the next ensuing session of Parliament but if the Bill be not passed in either of the two next sessions of Parliament this agreement and every clause hereof shall be void and of no effect. A.D. 1912.

16. In the event of the Bill presented by the Council failing to receive the assent of Parliament in the next session the day of transfer shall be the fifteenth day of August 1912 and the provisions of this agreement shall in all respects apply as if the Bill shall receive the said assent in the ensuing session.

17. On and from the passing the Bill promoted by the Council for giving effect to this agreement the clerk and treasurer to the Council shall have access to the office of the Company during office hours and may inspect the books papers records and writings of the Company and otherwise make themselves acquainted with the affairs of the Company preparatory to the taking over of the undertaking on the day of transfer and the Company shall direct their secretary to give to the said clerk and treasurer such assistance and information relating to such affairs as they may require.

18. The Company shall pay all their own costs relating to these presents and to the said Bill and to the transfer of the said undertaking.

19. The Company will construct erect and maintain the intended new water service to Phillipstown New Tredegar within the Council's area and will complete same in a thorough and workmanlike manner at their own cost not exceeding the sum of £400 such sum having been included in the said purchase price of £23,415 to remunerate the Company for the said works.

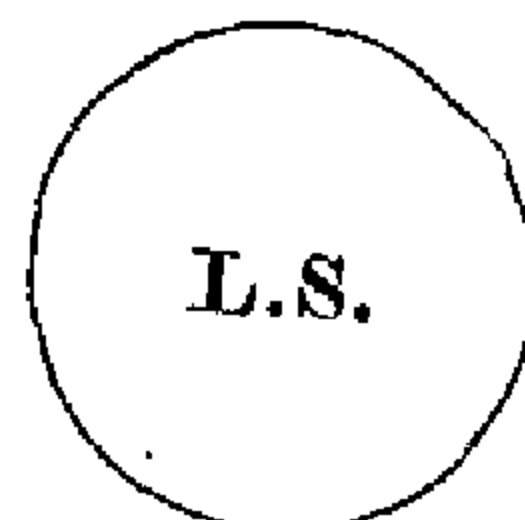
20. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights and liabilities of either party hereunder the same shall be referred to an arbitrator to be appointed by the President of the South Wales Institute of Engineers and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act.

[Ch. 1.] *Bedwellty Urban District Council* [2 & 3 GEO. 5.]
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In witness whereof the Company and Council have caused their respective common seals to be affixed the day and year first above written.

The common seal of the urban district council
of Bedwellty was hereunto affixed in the
presence of



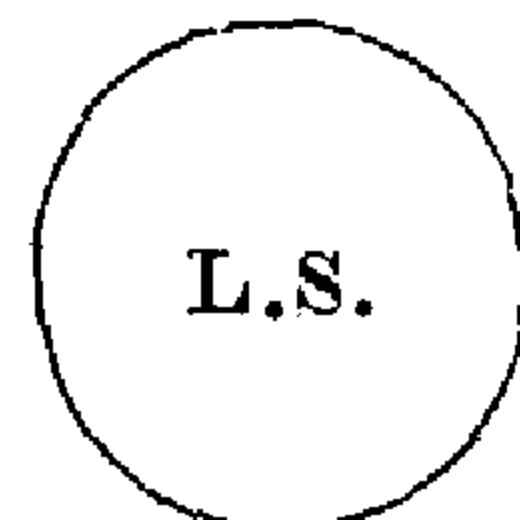
H. POPE

Chairman.

T. J. THOMAS

Clerk.

The common seal of the New Tredegar Gas
and Water Company Limited



N. PHILLIPS

Chairman.

P. W. JONES

Secretary.

THE SECOND SCHEDULE.

MEMORANDUM of AGREEMENT made the twenty-sixth day of February 1912 between THE BLACKWOOD GAS COMPANY of Blackwood in the county of Monmouth (hereinafter called "the Company") of the one part and THE URBAN DISTRICT COUNCIL OF THE URBAN DISTRICT OF BEDWELLY in the same county (hereinafter called "the Council") of the other part.

WHEREAS under and by virtue of the Blackwood Gas Act 1909 (hereinafter called "the Act of 1909") the Company were incorporated and authorised to manufacture and supply gas for lighting heating motive power and other purposes within the limits of supply thereby prescribed (that is to say certain parts of the parishes and urban districts of Mynyddislwyn and Bedwellty both in the county of Monmouth) and to provide produce sell dispose of and deal in gas and coke tar and all other residual products resulting from the manufacture of gas and generally to carry on the business usually carried on by a gas company:

And whereas the Council have introduced into Parliament in the present session a Bill intituled "A Bill to authorise the urban district council of Bedwellty to supply gas and water within their urban district and the neighbourhood thereof to authorise the purchase of certain gas and water undertakings and to make further provision in regard to the local government and improvement of the district":

A.D. 1912.

And whereas the Company have agreed to sell and the Council have agreed to purchase the undertaking of the Company on the terms and conditions hereinafter contained:

Now it is mutually agreed between the Company and the Council as follows:—

(1) The Company shall sell and the Council shall purchase as a going concern the whole of the undertaking of the Company with all and singular their real and personal property of whatever tenure goodwill assets and effects belonging thereto except—

- (a) All cash balances (other than consumers' deposits but including all bills of exchange promissory notes cheques and other negotiable securities) in the possession of the Company or that of their bankers and agents on the date of the completion of the purchase (hereinafter called "the day of transfer");
- (b) All rents rates and profits and all book and other debts accrued due prior to the day of transfer with proportionate parts of accruing rents rates and profits up to the same day; and
- (c) All books and papers relating exclusively to the shareholders in and the constitution of the Company subject to the foregoing exceptions.

The said undertaking of the Company shall include—

- (a) The leasehold gasworks and premises situate at Blackwood and all plant holders purifiers and gas apparatus mains pipes valves and other works relating thereto with all land and buildings estates rights interests easements privileges books writings chattels and effects and other real and personal and mixed estates of the Company (but so that the Company may retain such books and documents as may be necessary to enable them to collect moneys due to them up to the quarter next preceding the day of transfer and to wind up the affairs of the Company);

A.D. 1912.

(b) All agreements as to and concerning the sale or supply of gas coke tar and all other residual products by or to the Company and every agreement existing on the day of transfer and all claims and demands powers and authorities whatsoever of or to which the Company on the day of transfer is seised or possessed or is otherwise entitled at law or equity with the appurtenances and (subject as hereinafter appears) the profits of the undertaking as and from the day of transfer And where necessary for the purpose of giving effect to this Agreement all revenue due to the Company up to the day of transfer and all outgoings rents rates and taxes shall be apportioned between the Company and the Council.

(2) The day of transfer shall be the 31st day of December 1912 and the Council shall on that day pay to the Company the purchase money hereinafter mentioned and the Company shall thereupon on that day give possession of the undertaking to the Council and the Company shall save as hereinafter mentioned carry on their business as heretofore at their own risk and for their own profit up to the day of transfer.

(3) The Company shall pay all the debts and liabilities of and attaching to the undertaking up to the day of transfer.

(4) The Company shall collect on their own behalf and for their own benefit all arrears of gas rents and other moneys which shall be due to them up to the end of the quarter next preceding the day of transfer and the Council shall collect the gas rents and other moneys which shall accrue during the quarter current at the day of transfer and pay to the Company the proportion thereof which shall accrue in respect of the period of such current quarter up to and including the day of transfer.

(5) The Company shall on the day of transfer save as aforesaid deliver to the Council all works deeds agreements counsels and engineers opinions and reports plans descriptions of works vouchers letters books and other records of the business and proceedings of the Company and originals or copies of all other documents drafts or writings whether in the possession of the Company or of their solicitors agents resident engineer or consulting engineer.

(6) After the day of transfer and until the Company shall be finally wound up and dissolved the Company shall for the purpose of making up the accounts of the Company and for all other reasonable

purposes in relation to the winding up of the Company have access at all reasonable times to all such books documents accounts and other papers relating to the transferred undertaking as shall have been handed over to the Council. A.D. 1912.

(7) In consideration of the transfer of the Company's undertaking the Council shall pay to the Company on the day of transfer the sum of twenty-three thousand and three hundred pounds and in addition thereto (a) such sum as may be then due by the Company either to their bankers or to any creditor on capital account only on the day of transfer and (b) the value of all stock and stores as hereinafter provided And the Council shall take the undertaking with the title or titles on which the Company acquired and hold same subject to the rents outgoings easements and incidents of tenure as the same is now held under by the Company.

(8) The Company shall manage the undertaking until the day of transfer and shall keep and deliver up the same in good and proper working order as a going concern and will complete the extensions and improvements now being carried out and carry out all further extensions and improvements as may be necessary or desirable in the ordinary and proper course of the affairs of the Company.

(9) The Company shall pay for all such extensions and improvements as may be properly charged to capital account by means of an overdraft from their bankers which will be ultimately payable by the Council under the provisions of this Agreement and shall not issue any further shares unless and until this Agreement has become void under the provisions hereinafter contained The audited accounts of the Company for the year ended the twenty-ninth day of April 1911 shall be deemed conclusive that the amount therein shown was properly expended by them on capital account up to that date and should any dispute arise as to whether any expenditure subsequent to that date was properly charged to capital account the matter shall be referred to arbitration in accordance with the provisions hereinafter contained.

(10) The Company shall not permit or allow the stores of the Company to become substantially above or below such quantity and value as may be necessary or desirable in the ordinary and proper course of their business and the Council shall take over and pay to the Company the value of such stores as may be handed over by the Company on the day of transfer such value in default of agreement to be fixed by arbitration as hereinafter provided and for the purpose of this clause the "stores" shall be deemed to include all coal coke

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A.D. 1912. tar lime and all other residual products fittings stock in trade and other stores but not meters stoves and fittings which are or have been fixed.

(11) If from any cause other than the wilful default of the Company the transfer is not completed on the day of transfer the Company shall be entitled to carry on the said undertaking and to retain the profit thereof up to the date of actual completion.

(12) The Council shall take into their employment the manager of the Company at the date of transfer at the same salary and upon the same conditions as then subsisting and shall pay to the directors and secretary of the Company by way of compensation for loss of office the sum of five hundred pounds in addition to the sums payable to the Company under this Agreement.

(13) The Council shall use its best endeavours to procure the passing in the present session of Parliament of their before-mentioned Bill with the amendments agreed upon between them and the Company at the time of the completion of this Agreement and the Company (if required) shall at the expense of the Council aid and assist the Council in obtaining the said intended Act subject to such amendments as aforesaid and in furtherance of this object shall supply to the Council at the like expense such information particulars and evidence in the possession of the Company or of any of their servants as the Council shall reasonably require and the Company by themselves their officers and servants shall support the said Bill subject to such amendments by evidence or otherwise if need be:

Provided that the Company may (notwithstanding anything herein contained) oppose the said Bill so far as may be necessary for the purpose of securing the protection of their interests under and in accordance with this Agreement and for that purpose the Company shall be at liberty to petition either House or both Houses of Parliament and to appear on any such petition by counsel agents and witnesses if they think fit but only up to such time as the shareholders of the Company approve of the sale Provided nevertheless that in the event of either House of Parliament making any alteration in this Agreement or in the clauses so agreed as aforesaid the Company may unless and until the Council elect to abandon the said Bill so far as the same relates to or affects the undertaking of the Company take such proceedings in opposition to the said Bill as they may at their discretion think fit and the Council hereby undertake that any previous postponement of such opposition shall not prejudice the Company in any way.

(14) This Agreement is subject to the approval of Parliament and to such alterations as shall be made by Parliament therein and shall be scheduled to the said Bill but in the event of either House of Parliament making any material alteration in this Agreement it shall be competent to either party to withdraw from the same but the Council shall in any event remain liable for the payment of the costs of the Company up to the date of such withdrawal as herein provided. A.D. 1912.

(15) If the said Bill be not passed by Parliament in the present session this Agreement (and every clause thereof) shall be then void and of no effect except that the Council shall remain liable for the payment of the costs of the Company as herein provided.

(16) On and from the passing of the said Bill the clerk and treasurer to the Council shall have access to the office of the Company during office hours and may inspect the books papers records and writings of the Company and otherwise make themselves acquainted with the affairs of the Company preparatory to the taking over of the undertaking on the day of transfer and the Company shall direct their secretary to give to the clerk and treasurer such assistance and information relating to such affairs as they may require.

(17) The Council shall pay all the costs of the Company (as between solicitor and client but only as if one solicitor were acting for the Company) of and incidental to this Agreement the said Bill or Bills and the transfer of the undertaking and all other costs (if any) of carrying out and completing the sale or in the event of any withdrawal from or avoidance of this Agreement under the provisions hereinbefore contained then all such costs as shall have been incurred up to the date thereof.

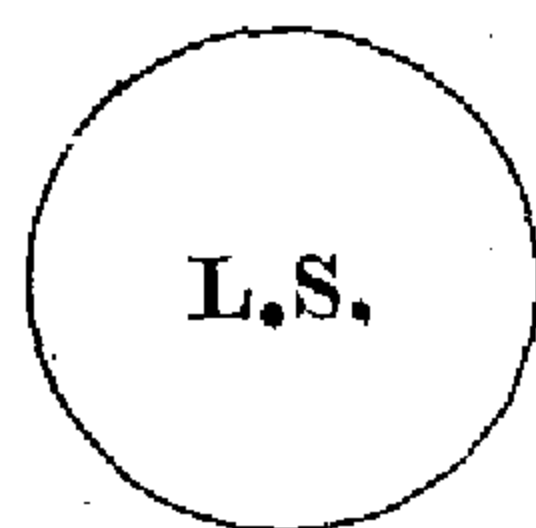
(18) If any question difference or dispute shall arise with reference to this Agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights and liabilities of either party hereunder the same shall be referred to an arbitrator to be appointed by the President of the South Wales Institute of Engineers and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this Agreement as if it were a submission to arbitration under that Act.

In witness whereof the Company have caused their common seal to be hereunto affixed and the Council have caused their common

[Ch. 1.] *Bedwellty Urban District Council* [2 & 3 GEO. 5.]
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A.D. 1912. seal to be affixed to a counterpart hereof the day and year first
before written.

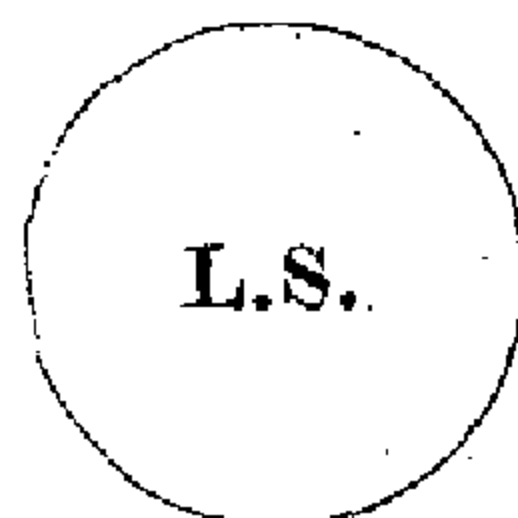
The common seal of the Blackwood Gas }
Company was hereunto affixed in the }
presence of



W. A. DAVIES }
DAVID TREASURE } Directors.

JOHN BETHEL Secretary.

The common seal of the Bedwellty Urban }
District Council was hereunto affixed in the }
presence of



THOMAS P. WILLIAMS
Chairman.

T. J. THOMAS
Clerk.

THE THIRD SCHEDULE.

GAS LANDS.

FIRST PART.

All those pieces or parcels of land situate in the urban district of Gelligaer in the county of Glamorgan near Tir Phil Station and lying on the north-west side of Gas Street at its junction with the approach to the bridge over the Rhymney River and containing an area of one rood and fourteen perches or thereabouts and being the site of the existing gasworks of the New Tredegar Company.

Also all that piece of land on the opposite side of Gas Street and containing 110 square yards or thereabouts and bounded on the west by Gas Street and on the east by the Rhymney River which pieces of land are now occupied by the New Tredegar Company and form part of their undertaking.

SECOND PART.

A piece of land belonging to or reputed to belong to or in the occupation of the Blackwood Company situate at Blackwood in the parish of Bedwellty in the county of Monmouth containing $1\frac{1}{4}$ acres.

or thereabouts and on which the gasworks of the said Company are situate bounded on the north-west and north-east by land belonging to or reputed to belong to the Governors of Williams Schools Caerleon and in the occupation of Jones Brothers on the south-west partly by Hall Street and partly by Bridge Street and on the south-east by Bridge Street. A.D. 1912.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

BEDWELLYT URBAN DISTRICT.

By virtue of the Bedwellty Urban District Council Act 1911 and of any other powers in that behalf them enabling the Bedwellty Urban District Council (hereinafter called "the Council") in consideration of the sum of pounds paid to the treasurer of the Council by (hereinafter called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum of pounds so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of shall be fully paid and satisfied with interest for the same at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the thirty-first day of March and the thirtieth day of September in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the Council in the said district on the day of one thousand nine hundred and and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may with the consent of the mortgagee be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the chairman and clerk of the Council for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated

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Act, 1912.

A.D. 1912. herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Council have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within named consenting the within mentioned time for repayment of the within mentioned principal sum of is hereby extended to the day of one thousand nine hundred and (and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum).

Dated this day of one thousand nine hundred and .

FORM OF TRANSFER OF MORTGAGE.

I (the within named of) in consideration of the sum of pounds paid to me by of (herein-after called "the transferee") do hereby transfer to the transferee (his) executors administrators and assigns (the within written security) (the mortgage number of the revenues of the Bedwellty Urban District Council bearing date the day of) and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine hundred and .

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